CORPORATE LAW CASE STUDY REPORT

Delay in Filing Financial Statements (Form AOC-4) – A Hypothetical Compliance Scenario

Case Company: ABC Technologies Private Limited *(Hypothetical)*

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Purpose: Portfolio Project

Applicable Law: Companies Act, 2013

Note: *The following case study is a hypothetical scenario prepared for educational and portfolio purposes and is not based on the actual compliance records of any company*

1. Background

ABC Technologies Private Limited (a hypothetical company) is engaged in providing IT consulting services in India. The company successfully conducted its Annual General Meeting (AGM) for the financial year ended 31 March 2025 on **29 September 2025**, where the shareholders approved the audited financial statements.

Under the Companies Act, 2013, the company was required to file its financial statements with the Registrar of Companies (ROC) using **Form AOC-4** within the prescribed time limit. Due to internal administrative delays, the company filed Form AOC-4 **20 days after the due date**

2. Issue

Whether the delayed filing of **Form AOC-4** constitutes non-compliance under the Companies Act, 2013, and what corrective actions should be taken.

3. Relevant Legal Provisions

Section 129

Every company shall prepare financial statements that give a true and fair view of the financial position and comply with the accounting standards prescribed under the Companies Act, 2013.

Section 134

The Board of Directors must approve the financial statements before they are placed before the shareholders at the Annual General Meeting.

Section 137

Every company must file a copy of its financial statements, including consolidated financial statements where applicable, with the Registrar of Companies in **Form AOC-4** within **30 days of the AGM**. Failure to file within the prescribed period may attract penalties under the Act.

4. Analysis

In this case, the company complied with important governance requirements by:

- Preparing financial statements.
- Obtaining Board approval.
- Conducting the AGM within the prescribed time.

However, the company failed to submit **Form AOC-4** within the statutory filing period. Although the delay was administrative rather than intentional, it still resulted in non-compliance with Section 137. Delayed statutory filings may:

- Increase regulatory risk.
- Attract additional filing fees and penalties.
- Affect the company's compliance record.
- Lead to unnecessary scrutiny from regulatory authorities.

5. Compliance Risk Assessment

Risk	Impact
Late filing of AOC-4	Non-compliance with Section 137
Additional filing fees	Financial impact
Regulatory scrutiny	Medium Risk
Compliance rating	Reduced

6. Recommendations

To avoid similar delays in the future, the company should:

- Maintain a statutory compliance calendar.
- Assign compliance responsibilities to the Company Secretary.
- Set automated reminders before filing deadlines.

- Review compliance status during every Board Meeting.
- Conduct quarterly internal compliance reviews

7. Conclusion

- The company successfully completed its Annual General Meeting and obtained approval for its financial statements but failed to file Form AOC-4 within the prescribed time limit. Although the delay was procedural, timely statutory filings are essential for maintaining good corporate governance and regulatory compliance.
- Implementing a structured compliance tracking system and periodic monitoring can significantly reduce the risk of future delays and strengthen the company's overall compliance framework

Disclaimer

This case study has been prepared solely for educational and portfolio purposes. **ABC Technologies private Limited** has been used only as the reference company for background information. The facts, compliance scenario, and analysis are hypothetical and do not represent the actual compliance records or practices of Infosys Limited.